

International Agreements and Non-binding Instruments: The Case-Zablocki Act (Case Act)

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In the early 1970s, Congress passed legislation to address concerns that Presidents were increasingly bypassing the [Article II treaty process](#) by using executive agreements to make international legal commitments for the United States—sometimes without congressional involvement or knowledge. The legislation, generally known as the Case-Zablocki Act of 1972 (Case Act), originally [required](#) the Secretary of State to submit to Congress the text of all international agreements entered into force not submitted to the Senate as treaties. Fifty years later, in 2022, Congress [amended](#) the Case Act (codified as amended at [1 U.S.C. § 112b](#)) to require, among other things, the Secretary to [submit](#) the text of international agreements and “qualifying non-binding instruments” (QNIs), and to provide Congress with a “[detailed description of the legal authority](#)” relied on for each international agreement and QNI. Congress also added [requirements](#) that the State Department publish much of what must be reported to Congress on a publicly available Department website. [According](#) to a report prepared by the Senate Committee on Foreign Relations at the time of enactment, this amendment—entitled “Enhancing Transparency on International Agreements and Non-binding Instruments”—“strengthens and modernizes the Case Act and makes it applicable, for the first time, to non-binding instruments.”

This Legal Sidebar first explicates the international agreements and QNIs that are covered by the amendment’s requirements as well as the requirement that the State Department describe the legal authorities relied on to conclude such agreements and QNIs. It then analyzes the authorities that the State Department has cited for a selection of international agreements and QNIs since the Department began implementing the 2022 Case Act amendment in October 2023. Finally, this Sidebar discusses considerations for Congress.

Binding International Agreements and QNIs

As amended in 2022, the Case Act [requires](#) the Secretary of State to submit on a monthly basis to the majority and minority leaders of the House and Senate and to the [Senate Foreign Relations and House Foreign Affairs Committees](#) (SFRC and HFAC) a list and the texts of all international agreements and QNIs that were “signed, concluded, or otherwise finalized during the prior month.” It also [requires](#) the Secretary to submit a “list of all international agreements that entered into force and [QNIs] that became

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operative ... during the prior month,” as well as the text “if it differs from the text previously provided” after the international agreement or QNI was “signed, concluded, or otherwise finalized.”

Additionally, not less than every 120 days, the State Department [must](#) publish the texts of many international agreements that entered into force and QNIs that became operative during the preceding 120 days on a publicly available Department website. Five types of international agreements and QNIs are [exempted](#) from the publication requirements, including those that contain classified information, address certain military matters, and establish the terms for certain foreign assistance. The State Department implements this publication requirement by publishing the texts of international agreements and QNIs on [separate websites](#): International agreement texts are published in the Department’s *Treaties and Other International Acts Series (TIAS)*, and QNI texts are published on [another site](#) in downloadable zip files organized by month.

International Agreements

The original Case Act [required](#) the Secretary of State to submit to Congress international agreements not submitted to the Senate as treaties (i.e., [executive agreements](#)) within 60 days after the agreement *entered into force*, a phrase that appears to reflect the [understanding under international law](#) that parties have adopted binding international legal commitments. International agreements enter into force for the United States after any relevant requirements under [U.S. domestic law](#) and [international law](#) have taken place and the President has ratified the agreement or otherwise [formally consented](#) on behalf of the United States to be legally bound [at the international level](#).

As amended, the act now [requires](#) the State Department to submit to Congress a list of and the texts of all agreements that were “signed, concluded, or otherwise finalized during the prior month.” The act [further requires](#) that “[t]he substance of oral international agreements . . . be reduced to writing.”

The United States may sign or otherwise finalize many international agreements [well before](#) they enter into force and become binding on the United States, and some agreements that the President signs may [never](#) enter into force for the United States. The 2022 amendment thus not only increases the frequency of the congressional reporting requirement; it also extends to the texts of international agreements that have been signed or otherwise finalized but have not yet entered force. This additional reporting requirement may provide Congress with more information at an earlier stage of the process about the international agreements that could eventually become binding on the United States.

QNIs

The 2022 amendment includes, for the first time, congressional reporting and publication requirements for QNIs. Although [not binding under international law](#), these commitments have become [prominent tools](#) in modern U.S. diplomacy. As the United States stated in a 2025 [submission](#) to the International Law Commission, such instruments provide “flexibility . . . to memorialize shared understandings, make political commitments, or advance cooperation with minimal procedural or other requirements in circumstances where establishing legal rights and obligations is not necessary.” [According](#) to the 2022 report prepared by the SFRC, QNI reporting requirements were necessary because, “as such instruments have proliferated, there has been increasingly less visibility into the international commitments made on behalf of the United States.”

The Case Act, as amended, requires submission only of non-binding instruments that are considered to be “qualifying” under the statute’s [two-pronged definition](#). First, under the statute, a QNI is a non-binding instrument that “is or will be under negotiation, is signed or otherwise becomes operative, or is implemented with one or more foreign governments, international organizations, or foreign entities, including non-state actors.” Second, the statute states that the instrument must be one either that “could

reasonably be expected to have a significant impact” on U.S. foreign policy or “is the subject of a written communication from the Chair or Ranking Member of either of the appropriate congressional committees to the Secretary.”

The State Department [regulation](#) implementing the Case Act’s QNI requirements sets out [factors](#) to be taken into account in determining whether a non-binding instrument “could reasonably be expected to have a significant impact on the foreign policy of the United States.” These factors, which the regulation states are to be considered in light of the “entire context of the transaction,” “include whether, and to what extent, the instrument”

- is important “to the United States’ relationship with another country”;
- “[a]ffects the rights or responsibilities of U.S. citizens, U.S. nationals, or individuals in the United States”;
- “[r]equires changes to U.S. law to satisfy commitments”;
- “[p]resents a new commitment or risk for the entire Nation”; and
- “[i]s of Congressional or public interest.”

As noted above, the second category of QNIs subject to the Case Act are those that are “the subject of a written communication from the Chair or Ranking Member of either [the SFRC or HFAC] to the Secretary.” An example of this occurred in April 2025, when the Ranking Member of the [SFRC](#) invoked this part of the statutory definition of QNI in seeking the text of the arrangements that the Secretary of State announced the United States had made with El Salvador regarding the detention of individuals removed from the United States. The Secretary subsequently submitted the text of diplomatic notes exchanged between the United States and El Salvador regarding detentions as part of the administration’s [May 2025 Case Act QNI report](#).

[Exempted](#) from the statutory definition of QNI is “any non-binding instrument that is signed or otherwise becomes operative or is implemented pursuant to the authorities relied upon by the Department of Defense, the Armed Forces of the United States, or any element of the intelligence community.” Some legal scholars have surmised, based on empirical research, that this exemption [may exclude](#) a considerable number of non-binding instruments from the Case Act’s requirements.

Description of Legal Authorities

In addition to the requirement that the texts of international agreements and QNIs be submitted to Congress, the Case Act as amended [requires](#) the Secretary of State to provide Congress with “[a] detailed description of the legal authority” the executive branch believes supports the international agreement or QNI. The act further requires the Secretary to “[cite all](#) [legal] authorities relied upon” and “[include](#) the specific article or section and subsection reference” for citations to the Constitution, statutes, and treaties. If such references are “not available,” the act mandates that the citation “be as specific as possible.” Additionally, in cases where the executive branch relies on the President’s authority under Article II of the Constitution (whether alone or with other authority), the act [directs](#) “the Secretary or appropriate department or agency [to] explain the basis for that reliance.”

In addition to the texts of international agreements and QNIs, the Case Act as amended [requires](#) the State Department to publish this information relating to legal authority within 120 days after international agreements enter into force and QNIs become operative (unless the international agreement or QNI is [exempted](#) from the publication requirements, as discussed above). As of this writing, the State Department has [published](#) Case Act [information](#) on legal authority for the months of October 2023 through July 2026. The following sections discuss the executive branch’s implementation of this requirement by examining a selection of the information regarding legal authority that has been made

available to the public on the State Department's two websites for legal authority information relating to [international agreements](#) and [QNIs](#) (which are separate from the websites for the texts described above, for a total of [four](#) State Department Case Act publication websites).

Legal Authority Relied on for International Agreements Other Than Article II Treaties

The State Department has taken the [position](#) in its *Foreign Affairs Manual* that there are three potential sources of law that may, alone or in combination, provide the President with authority for executive agreements: [treaties](#) approved by the Senate, [statutes](#), and [Article II of the Constitution](#). The Secretary of State has relied on all three of these sources for international agreements in the publicly available Case Act reports.

Reliance on Previously Entered Treaties

Existing treaties appear to be the legal authority that the State Department has relied on the least for executive agreements in its published Case Act reports through October 2025. [According](#) to the State Department's *Foreign Affairs Manual*, "[t]he President may conclude an international agreement pursuant to a treaty brought into force with the advice and consent of the Senate, the provisions of which constitute authorization for the agreement by the Executive without subsequent action by the Congress." In a 1956 decision, the Supreme Court [upheld](#) the President's authority to conclude an executive agreement on criminal jurisdiction over U.S. armed forces stationed in Japan, in part based on the Senate's approval of the underlying mutual security treaty between Japan and the United States. The Court reasoned that, because the security treaty approved by the Senate included a provision authorizing subsequent agreements regarding criminal jurisdiction, and because the Senate was aware that the agreement at issue was planned before providing its consent to the security treaty, the President had authority to enter into the executive agreement [as long as it was not](#) otherwise prohibited by the Constitution or legislation enacted after the security treaty. It is unclear whether the Court would have reached the same conclusion if the Senate had not been aware of the planned executive agreement at the time of its approval of the underlying treaty.

In most instances in which the State Department has relied on treaties as authority for executive agreements in its Case Act reporting, the Department also cites either the President's [Article II authority](#) or [statutes](#). For example, the Department cited the [United Nations Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances](#), as well as "Article II of the United States Constitution, sections 2 (conduct of foreign relations) and 3 (take care that the laws be faithfully executed)," in support of executive agreements with [Côte d'Ivoire](#), [Ecuador](#), and [Liberia](#) related to cooperation in countering illegal maritime operations. The Department has also [relied](#) on the [Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on Their Destruction](#), along with [statutory](#) authority regarding U.S. [implementation](#) of the Convention, for executive agreements with the Organization for the Prohibition of Chemical Weapons related to the evaluation of the proficiency of laboratories in analyzing chemical samples.

The Department sometimes [cites specific](#) treaty provisions, and sometimes [cites only](#) the treaty name. In at least two instances, the Department [cited](#) a specific [condition](#) in the Senate's resolution consenting to U.S. ratification of a treaty. Additionally, the Department generally does not elaborate on how any asserted [constitutional](#) or [statutory](#) authority interacts with the authority it claims a treaty provides.

Reliance on Statutes

In its public reports published as of July 2026, the State Department has relied the most on statutory authority for executive agreements. In some instances, the statutes [cited](#) by the Department [authorize](#) the President to [conclude](#) agreements, and in [others](#) there [is no such](#) explicit [delegation](#) of authority. The Department generally does not elaborate on its interpretation of statutes that do not contain an explicit delegation. For example, the Department legally [relied](#) on an existing treaty and on a [statute](#) appropriating funds for compensation for a project to mitigate flood risks in the Columbia River Basin for an [executive agreement](#) with Canada providing for such compensation in the interim period during which the countries were finalizing amendments to the underlying treaty. The Department also relied on the U.S. Trade Representative’s “general authority to negotiate and conclude agreements” in 21 U.S.C. § 2171 and executive orders for an [agreement with Israel](#) modifying a prior agreement regarding trade in agricultural products and an [agreement with Saudi Arabia](#) regarding motor vehicle safety standards.

When the State Department has relied on Article II in addition to a statute, the Department tends to cite the following Article II sections with parenthetical remarks:

- “section 2 (conduct of foreign relations),” such as [for an agreement with the European Union](#) regarding satellite launches and agreements with [Norway](#) and [Sweden](#) regarding U.S. participation in space launches from those countries;
- “section 3 (take care that the laws be faithfully executed),” such as for [an agreement with Peru](#) regarding measures to combat drug trafficking and agreements with [Saudi Arabia](#) and [El Salvador](#) regarding mutual assistance in customs enforcement; or
- “section 2 (conduct of foreign relations) and section 3 (take care that the laws be faithfully executed),” such as for [an agreement with Romania](#) regarding the use of traveler information.

In these instances, the Department [does not explain](#) whether it considers each source to provide an independent basis of legal authority or believes both Article II and the relevant statute to be necessary to support the executive branch’s authority for executive agreement.

Exclusive Reliance on Article II

The State Department has relied solely on the President’s authority under Article II of the Constitution for several executive agreements in its published Case Act reports made publicly available on its website since the 2022 amendment took effect. In [some](#) instances, it has [cited](#) only “Article II of the United States Constitution, section 2 (commander-in-chief and conduct of foreign relations).” It has cited such authority for various agreements, including a [security agreement with Ukraine](#), status of forces agreements with [Ecuador](#) and [Paraguay](#), and an [agreement regarding the protection of classified information with Italy](#). For other agreements, the Department [relied only on](#) asserted Article II authority related to “conduct of foreign relations,” such as the [multilateral agreement establishing the Board of Peace](#), an [agreement with Ukraine](#) establishing a “U.S.-Ukraine Reconstruction Investment Fund,” an [agreement with Estonia](#) concerning security measures for the protection of classified information, and [multilateral economic agreements](#) with countries in the Indo-Pacific region. The Department [does not](#) further [elaborate](#) on its [interpretation](#) of the President’s Article II authority in relation to the given agreement.

The scope of the President’s authority to enter into binding international agreements solely based on Article II authority has at [times](#) been [disputed](#) and has not been elaborated on by courts [with much detail](#). While Article II, section 2, clause 1 explicitly [grants](#) the President the authority to act as the nation’s “Commander-in-Chief,” which is the description the State Department sometimes includes in the parenthetical following the citation, neither it nor any other [part of Article II](#) expressly refers to a power to “conduct foreign relations” or a power related to executive agreements. The Supreme Court has [held](#) that

the President has some unilateral authority [inherent in Article II](#) to conclude [executive agreements settling foreign claims](#), based [in part](#) on the President's inherent Article II power to recognize foreign governments. The Court has periodically referenced the power to conduct foreign relations in its opinions upholding unilateral executive agreements, at times [explaining that](#) the Constitution assigns this power to both branches, and sometimes [characterizing](#) it as one over which the President has the "vast share of responsibility." The Court does not appear to have elaborated on this authority with much more specificity. In one opinion not involving an executive agreement, the Court [declined](#) to address the executive branch's claim that the President has "exclusive authority to conduct diplomatic relations," explaining that such an inquiry was unnecessary to resolve that case.

Legal Authority Relied on for QNIs

In [all its published](#) legal authority statements for QNIs through July 2026, the State Department has [relied](#) solely on [Article II](#). Specifically, [the](#) Department [states](#): "The President has authority under Article II to represent the nation in foreign affairs, including the authority to communicate with foreign governments and to determine the form and manner in which the Executive engages in diplomacy." At least one appellate court has [held](#) the President's Article II authority extends to making non-binding commitments to foreign companies, at least where those commitments are consistent with the President's domestic authorities. In other [contexts](#), including [before](#) the Supreme Court, the executive branch has claimed the President has exclusive authority "to conduct diplomatic relations." As discussed above, the Court [concluded](#) it was unnecessary to address that claim.

The State Department has relied on the above statement of unilateral Article II authority for a variety of QNIs, including the [Islamabad Memorandum of Understanding Between the Islamic Republic of Iran and the United States of America](#) (signed June 17, 2026), several [arrangements](#) with [various](#) countries [regarding](#) the [transfer](#) or [removal](#) of "[third-country nationals](#)," [memoranda of understanding](#) with Poland and Romania on "countering foreign state information manipulation," and a multilateral [Political Understanding on Responsible Military Use of Artificial Intelligence and Autonomy](#)."

Considerations for Congress

As it assesses the executive branch's implementation of the Case Act's requirements, including examining the texts of the international agreements and QNIs submitted and the legal authorities relied on for these commitments, Congress may take into account several considerations.

As discussed, the 2022 Case Act amendments [require](#) the Secretary of State to submit to Congress international agreements that have been signed or otherwise finalized but not yet entered into force. As a result, Congress may consider taking actions to support, oppose, or restrict an agreement's entry into force for the United States. Congress has in the past, for example, [prohibited](#) the President from providing the United States' consent to be a party to certain types of international agreements unless the agreement is approved by the Senate pursuant to Article II or authorized by statute.

Additionally, in the exercise of its oversight of the statutory authority relied on by the State Department in support of executive agreements, Congress may consider maintaining, expanding, or limiting statutory delegations. Where the executive branch relies on statutory authority that does not expressly reference authority to consent to international agreements, for example, Congress may consider explicitly providing such authority, specifying that the statute does not authorize international agreements, or conditioning the United States' becoming a party to the agreement on congressional approval.

Regarding QNIs, Congress may consider maintaining or adjusting the statutory definition depending on its assessment of the QNIs that it receives pursuant to the Case Act. Congress may, for example, codify the factors identified in the State Department [regulation](#) for determining whether a non-binding

instrument “could reasonably be expected to have a significant impact on the foreign policy of the United States,” or specify additional, fewer, or different factors. Additionally, Congress may consider maintaining or changing the statute’s [exclusion](#) of non-binding instruments that are made pursuant to the authority of the Department of Defense, the U.S. Armed Forces, or the [intelligence community](#).

The Case Act also [provides](#) that “[t]he substance of oral international agreements shall be reduced to writing.” The act appears [not to include](#) a similar explicit requirement for oral QNIs. While the [definition of QNI](#) could arguably be interpreted to include oral agreements, [some](#) Supreme Court [caselaw](#) suggests that the absence of an express requirement for reducing oral QNIs to writing, particularly where there is such a requirement for international agreements, might be interpreted to indicate Congress’s intent not to impose that requirement for QNIs. While the State Department’s Case Act regulations [address](#) the submission of oral international agreements, they do not appear to mention the treatment of oral QNIs. In light of this potential ambiguity, Congress may consider amending the Case Act to clarify whether it intended the writing requirement to apply only to oral international agreements or to oral international agreements and oral QNIs.

Congress may also assess the State Department’s implementation of the Case Act’s [requirement](#) that the Secretary provide “[a] detailed description of the legal authority” relied on for each international agreement and QNI. If Congress believes it needs different, less, or additional information in the exercise of its oversight role regarding the United States’ international commitments, Congress may consider amending the Case Act to clarify or otherwise modify this requirement.

Additionally, Congress may consider using its oversight authorities to examine the State Department’s compliance with the Case Act’s requirements. Some Members have, for example, cited the executive branch’s obligations under the Case Act in [letters](#) to the Secretary of State [seeking](#) information about agreements or arrangements with foreign countries that have been announced by the Trump Administration. Congress may also consider the Government Accountability Office’s (GAO) [June 23, 2026 report](#) on the State Department’s compliance with the Case Act, which the GAO published [pursuant](#) to the 2022 Case Act amendment. The GAO made [seven recommendations](#) to the Department, “including that [it] improve the timeliness and completeness of its reporting on agreements and [QNIs], and optimize its website for discoverability and searchability.”

Finally, Congress may wish to act in light of the judicial proceedings in a [case](#) seeking [declaratory and injunctive relief](#) against the Secretary of State and the State Department in the U.S. District Court for the District of Columbia alleging that the Department violated the publication requirements of the Case Act by publishing agreement and QNI texts and associated legal authority information [late](#) and [failing to publish](#) some texts and associated information. The plaintiff is the publisher of *Lawfare*, which the complaint [describes](#) as “an online multimedia publication that is dedicated to informing public understanding of the operations and activities of the federal government, particularly as they relate to national security law and policy.”

On August 31, 2026, the court [denied](#) most of the grounds on which the State Department moved to dismiss the plaintiff’s claims, allowing the case to proceed. Among other things, the court concluded that the plaintiff has [standing](#) to seek an injunction requiring the Department to publish required texts and associated legal authority information because the plaintiff had sufficiently alleged an “[informational injury](#)” in the form of alleged lack of access to these texts and associated information that the Department is required to publish under the Case Act. Relying on Supreme Court precedent [holding](#) that a plaintiff may establish an informational injury sufficient for purposes of standing “when the plaintiff fails to obtain information which must be publicly disclosed pursuant to a statute,” the court [reasoned](#) that “the Case Act . . . is a quintessential public-disclosure law.” (Some courts interpret the Supreme Court’s informational injury precedents [more narrowly](#) and require that plaintiffs establish that they suffered “‘downstream consequences’ from failing to receive the required information” to establish standing.)

Courts in the past [have often found](#) that plaintiffs lack standing to bring challenges to executive branch actions or inactions in foreign policy areas such as international agreements and war powers, whereas in this case, the court based its standing analysis on an interpretation of the public-disclosure requirements in the Case Act. Congress may consider the potential implications of the court's standing analysis on possible suits alleging violations of existing or future foreign policy-related legislation that does or could require the public disclosure of information.

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